SPECIAL MEETING AGENDA
OF THE
ARVIN CITY COUNCIL / SUCCESSOR AGENCY TO THE ARVIN COMMUNITY REDEVELOPMENT AGENCY / ARVIN HOUSING AUTHORITY / ARVIN PUBLIC FINANCING AUTHORITY

THURSDAY JUNE 25, 2026 5:00p.m.

CITY HALL COUNCIL CHAMBERS
200 CAMPUS DRIVE, ARVIN

CALL TO ORDER Mayor Olivia Calderón

PLEDGE OF ALLEGIANCE

INVOCATION

****

ROLL CALL	Olivia Calderón	Mayor
	Jaime Perez	Mayor Pro Tem
	Susana Reyes	Councilmember
	Donny Horton	Councilmember
	Tim Tarver	Councilmember

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STAFF	Jeff Jones	City Manager
	Stephanie Gutierrez	City Attorney – Burke, Williams & Sorensen, LLP
	Cecilia Vela	City Clerk



I pledge allegiance to the flag of the United States of America and to the Republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

PUBLIC COMMENTS:

The meetings of the City Council and all municipal entities, commissions, and boards ("the City") are open to the public. At regularly scheduled meetings, members of the public may address the City on any item listed on the agenda, or on any non-listed matter over which the City has jurisdiction. At special or emergency meetings, members of the public may only address the City on items listed on the agenda. Such comments shall be made in person and before the City during the meeting as prescribed below. There is a time limitation of two (2) minutes per person. However, the City shall allow a speaker using a translator four (4) minutes to ensure that non-English speakers receive the same opportunity to directly address the City. Sixteen Minutes (16) total (plus additional time based on use of a translator, if any) will be allowed for any one subject. For any item that is not on the agenda and within the jurisdiction or interest of the City, please come to the podium at this time. The Brown Act does not permit any action or discussion on items not listed on the agenda. If you wish to speak regarding a scheduled agenda item, please come to the podium when the item number and subject matter are announced, and the Mayor or Chair opens Public Comment on the item. When recognized, please begin by providing your name and address for the record (optional). Anyone wishing to submit written information at the meeting needs to furnish ten (10) copies to the City Clerk in advance to allow for distribution to City Council, staff and the media. Willful disruption of the meeting shall not be permitted. If the Mayor finds that there is in fact willful disruption of any City Council Meeting, he/she may order the disrupting parties out of the room and subsequently conduct the City's business without them present.

In accordance with the Brown Act, all matters to be acted on by the City must be posted at least 72 hours prior to a regular meeting. In cases of an emergency, or when a subject matter needs immediate action or comes to the attention of the City subsequent to the agenda being posted, upon making certain findings, the City may act on an item that was not on the posted agenda.

AGENDA STAFF REPORTS AND HANDOUTS:

Staff reports and other disclosable public records related to open session agenda items are available at City Hall, 200 Campus Drive, Arvin, CA 93203 during regular business hours.

CONDUCT IN THE CITY COUNCIL CHAMBERS:

Rules of Decorum for the Public

Members of the audience shall not engage in disorderly or boisterous conduct, including the utterance of loud, threatening or abusive language, clapping, whistling, stamping of feet or other acts which disturb, disrupt, impede or otherwise render the orderly conduct of the City meeting infeasible. A member of the audience engaging in any such conduct shall, at the discretion of the presiding officer or a majority of the City, be subject to ejection from the meeting per Gov. Code Sect. 54954.3(c).

Removal from the Council Chambers:

Any person who commits the following acts in respect to a meeting of the City shall be removed from the Council Chambers per Gov. Code Sect. 54954.3(c).

(a) Disorderly, contemptuous or insolent behavior toward the City or any member thereof, tending to interrupt the due and orderly course of said meeting;
(b) A breach of the peace, boisterous conduct or violent disturbance, tending to interrupt the due and orderly course of said meeting;
(c) Disobedience of any lawful order of the Mayor, which shall include an order to be seated or to refrain from addressing the City; and
(d) Any other unlawful interference with the due and orderly course of said meeting.

AMERICANS with DISABILITIES ACT:

In compliance with the ADA, if you need special assistance to participate in a City meeting or other services offered by the City, please contact the City Clerk's office, (661) 854-3134. Notification of at least 48 hours prior to the meeting or time when services are needed will assist the City staff in assuring that reasonable arrangements can be made to provide accessibility to the meeting or service.

1. APPROVAL OF AGENDA AS TO FORM.

Motion _____ Second _____ Vote _____

Roll Call: CM Tarver ____ CM Horton ____ CM Reyes ____ MPT Perez ____ Mayor Calderón _____

2. PRESENTATION(S)

A. Presentation Related to Impact of 1% Sales Tax Increase
Mayor Saul Ayon – City of McFarland

3. ACTION ITEM(S)

A. Consideration and Approval of:

Option 1: *(Includes the Measure)*

A Resolution of the City Council of the City of Arvin, California Calling and Giving Notice of the Holding of A General Municipal Election to be held on Tuesday, November 03, 2026 for the Election of Three (3) Members of the City Council and For Submission to the Voters A Question Relating to the Establishment of A 1% Transactions and Use Tax. (4/5 Vote Required);

A Resolution of the City Council of the City of Arvin, California Setting Priorities for Filing Written Arguments Regarding a City Measure and Directing the City Attorney to Prepare an Impartial Analysis;

A Resolution of the City Council of the City of Arvin, California Providing for the Filing of Rebuttal Arguments for City Measures Submitted at Municipal Elections;

and

A Resolution of the City Council of the City of Arvin, California Requesting the Board of Supervisors of the County of Kern to Consolidate A General Municipal Election to be held on Tuesday November 03, 2026 with the Statewide General Election to be held on the Same Date.

OR

Option 2: *(Does not include Measure)*

A Resolution of the City Council of the City of Arvin, California Calling and Giving Notice of the Holding of A General Municipal Election to be held on Tuesday, November 03, 2026 for the Election of Three (3) Members of the City Council;

and

A Resolution of the City Council of the City of Arvin, California Requesting the Board of Supervisors of the County of Kern to Consolidate A General Municipal Election to be held on Tuesday November 03, 2026 with the Statewide General Election to be held on the Same Date.

Staff recommends adoption of the four (4) resolutions listed above in Option 1.

Motion _____ Second _____ Vote _____

Roll Call: CM Tarver ____ CM Horton ____ CM Reyes ____ MPT Perez ____ Mayor Calderón _____

CITY OF ARVIN
Staff Report

Special Meeting Date: June 25, 2026

TO: Arvin City Council

FROM: Jeff Jones, City Manager

SUBJECT: Consideration and Approval of Resolutions Related to Calling and Giving Notice of the Holding of A General Election to be held on Tuesday, Nov. 3, 2026 for the Election of Three (3) Members of the City Council, Setting Priorities for the filing of Arguments, Directing the City Attorney to Draft an Impartial Analysis, Authorizing Rebuttal Arguments; and Requesting the Board of Supervisors of the County of Kern to Consent and Agree to Consolidate the General Municipal Election with the Statewide General Election to be held on the Same Date; with Option to Add a One Percent Transactions & Use Tax Measure to the Ballot.

OVERVIEW:
The City Council is being asked to approve several resolutions related to the upcoming General Municipal Election on November 3, 2026. This election will include:

1. The selection of three (3) Members of City Council; and
2. Potentially, a local ballot measure.

These actions are required to ensure the election is conducted in accordance with California law and that the voters receive clear and accurate information.

BACKGROUND:

Pursuant to California Elections Code § 1301 and Arvin Municipal Code § 1.06.010, the City of Arvin ("City") is required to hold its General Municipal Election on the first Tuesday after the first Monday in November of each even-numbered year. Accordingly, the next election will take place on November 3, 2026, in coordination with the statewide general election.

At this election, three (3) City Council seats will be on the ballot. These seats are currently held by Councilmembers Susana Reyes, Donny Horton, and Tim Tarver.

To formally initiate the election process, the City Council must adopt resolutions that:

- Call and provide official notice of the General Municipal Election; and
- Request that the Kern County Board of Supervisors consolidate the City's election with the statewide election.

Consolidation with the County allows Kern County Elections to administer the election on the City's behalf, including services such as ballot processing, canvassing of results, and compliance with state election laws. The City is responsible for reimbursing the County for the actual costs of these services.

Attachment: Staff Report re Elections Resolutions_062526 (Resolutions Giving Notice of Election and Requesting County Consolidate Election

In addition to the required election actions, staff recommends that the City Council consider placing a one percent (1%) Transactions and Use Tax measure on the ballot. If approved by voters, this measure would provide a local funding source to support essential City services, including:

- Police and fire protection
- 911 emergency response services
- Street and road maintenance
- Parks and recreational programs
- Youth and senior services
- Other general municipal services

While the placement of a tax measure on the ballot is optional, the City is required to conduct the election for City Council seats. For this reason, staff recommends that, at a minimum, the City Council approve the resolutions listed under Option 1, which are necessary to proceed with the election.

Option 1, which reflects staff's full recommendation, includes additional resolutions related to a potential ballot measure. Two of these resolutions apply only if the Council chooses to place a measure on the ballot.

Option 1: *(Includes the measure)*
A Resolution of the City Council of the City of Arvin, California Calling and Giving Notice of the Holding of A General Municipal Election to be held on Tuesday, November 03, 2026 for the Election of Three (3) Members of the City Council and For Submission to the Voters A Question Relating to the Establishment of a 1% Transactions and Use Tax; (4/5 Vote Required);

A Resolution of the City Council of the City of Arvin, California Setting Priorities for Filing Written Arguments Regarding a City Measure and Directing the City Attorney to Prepare an Impartial Analysis;

A Resolution of the City Council of the City of Arvin, California Providing for the Filing of Rebuttal Arguments for City Measures Submitted at Municipal Elections;

and

A Resolution of the City Council of the City of Arvin Requesting the Board of Supervisors of the County of Kern to Consolidate A General Municipal Election to be held on Tuesday November 03, 2026 with the Statewide General Election to be held on the Same Date.

OR

Option 2: *(Does not include the measure)*
A Resolution of the City Council of the City of Arvin, California Calling and Giving Notice of the Holding of A General Municipal Election to be held on Tuesday, November 03, 2026 for the Election of Three (3) Members of the City Council;

and

A Resolution of the City Council of the City of Arvin Requesting the Board of Supervisors of the County of Kern to Consolidate A General Municipal Election to be held on Tuesday November 03, 2026 with the Statewide General Election to be held on the Same Date.

Attachment: Staff Report re Elections Resolutions_062526 (Resolutions Giving Notice of Election and Requesting County Consolidate Election

KEY DECISIONS BEFORE THE CITY COUNCIL:

Calling and Noticing the Election

The City Council must formally approve a resolution to declare that the election will take place on November 3, 2026, specify that three (3) Council seats will be on the ballot and provide official public notice of the election.

Consolidating with the Statewide Election

The Council may also approve a resolution requesting Kern County to combine the City's election with the Statewide General Election on November 3, 2026, and provide election services, such as ballot processing and result certification. Staff views this action as mandatory given that this helps reduce costs and ensures efficient election administration.

Possible Ballot Measure (OPTIONAL)

The Council is being asked to consider placing a 1% Transactions and Use (Sales) Tax measure on the ballot. If approved by voters, this measure could generate an estimated $2,350,000 annually to support services such as public safety (police and fire), emergency response (911), street and road repairs, parks and community programs and other general city services.

IF THE MEASURE IS INCLUDED:

If the Council chooses to place the measure on the ballot, two (2) additional resolutions would help ensure voters receive fair and understandable information:

Written Arguments and Impartial Analysis (OPTIONAL)

This resolution, if adopted, establishes rules for submitting written arguments for and against the measure, sets deadlines, format requirements, and who may submit arguments. Additionally, this resolution directs the City Attorney to prepare an impartial analysis explaining what the measure does, its potential impacts and key provisions in plain language. The purpose of this resolution is to ensure voters receive both advocacy perspectives and a neutral explanation.

Rebuttal Arguments (OPTIONAL)

This resolution, if adopted, allows supporters and opponents to submit rebuttal arguments responding to each other's claims. These responses appear in the voter guide alongside main arguments and help voters better understand differing viewpoints.

IMPORTANT DATES:
The filing period for nomination papers will be July 13, 2026, through August 7, 2026. The nomination period will be extended to August 12, 2026, should an incumbent not file by the deadline. The last day for the County to certify the election results is December 3rd, 2026.

STAFF RECOMMENDATION:
Staff recommends adoption of the four (4) resolutions listed above in Option 1.

FINANCIAL IMPACT:
FY 26-27 general funds will be utilized. The City is due to reimburse the County for the City's share of costs. The cost of every election varies based on a variety of factors. The total cost of the 2022 General Municipal Election when 3 council seats were on the ballot was approximately $4,300. If the proposed

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measure relating to the establishment of a 1% Transactions and Use Tax is approved by the voters, then it is estimated to generate approximately $2,350,000 annually.

ATTACHMENTS:

- Resolutions

Attachment: Staff Report re Elections Resolutions_062526 (Resolutions Giving Notice of Election and Requesting County Consolidate Election

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA CALLING AND GIVING NOTICE OF THE HOLDING OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 03, 2026, FOR THE ELECTION OF THREE (3) MEMBERS OF THE CITY COUNCIL AND FOR SUBMISSION TO THE VOTERS A QUESTION RELATING TO THE ESTABLISHMENT OF A 1% TRANSACTIONS AND USE TAX.

WHEREAS, pursuant to California Elections Code Section 1301 and Arvin Municipal Code Section 1.06.010, the Municipal Election for electing three (3) Members of the City Council for the City of Arvin, shall be held concurrently with the California State Election on Tuesday, November 03, 2026; and

WHEREAS, the City Council also desires to submit to the voters at the election a question relating to the establishment of a 1% transactions and use tax.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA, DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of California Elections Code Section 1301 and Arvin Municipal Code Section 1.06.010 there is called and ordered to be held in the City of Arvin, California, on Tuesday, November 03, 2026, a General Municipal Election for the purpose of electing three (3) Members of the City Council for the full term of four (4) years each.

SECTION 2. That the City Council, pursuant to its right and authority, does order submitted to the voters at the General Municipal Election the following question:

To protect funding for the City of Arvin's local public safety, police and fire departments, 911 emergency response, street and road repairs, parks, youth and senior services, and other general city services, shall the measure establishing a 1% transactions and use tax in the City of Arvin, providing approximately $2,350,000 annually, until ended by voters, with all funds staying local, independent audits, and public disclosure, be adopted?	**YES**
	NO

SECTION 3. That the proposed complete text of the measure submitted to the voters is attached hereto as Exhibit A and incorporated herein by this reference. Further, pursuant to Revenue and Taxation Code Section 7285.9, the City Council hereby approves the proposed complete text of the measure in the form as provided in Exhibit A and the submission thereof to the voters of the City.

Attachment: WITH MEASURE - Reso Notice of Election Nov 2026_CC Mtg 062526 (Resolutions Giving Notice of Election and Requesting

SECTION 4. That the vote requirement for the measure to pass is a majority (50% +1) of the votes cast.

SECTION 5. That the ballots to be used at the election shall be in form and content as required by law.

SECTION 6. That the City Clerk is authorized, instructed and directed to coordinate with the County of Kern Elections Department to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

SECTION 7. That the polls for the election shall be open at seven o'clock a.m. the day of the election and shall remain open and continuously from that time until eight o'clock p.m. of the same day when the polls (vote centers) shall be closed, pursuant to Election Code Section 10242, except as provided in Sections 14212, 14401 of the Elections Code of the State of California.

SECTION 8. That in all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections.

SECTION 9. That notice of the time and place of holding of the election is given and that the City Clerk is authorized, instructed, and directed to give further or additional notice of the election, in time, form and manner as required by law.

SECTION 10. That in the event of a tie vote (if any two or more persons received an equal and the highest number of votes for an office) as certified by the County of Kern Elections Department, the City Council, in accordance with Election Code §15651(b), shall conduct a special runoff election to resolve the tie vote and such special runoff election is to be held on a Tuesday not less than 40 days nor more than 125 days after the administrative or judicial certification of the election which resulted in a tie vote.

SECTION 11. The City Clerk and City Manager are authorized to take all actions as necessary to effectuate the purposes of this Resolution and the election. The City Manager is authorized to make any typographical, clerical, and non-substantive corrections and such other revisions as may be required to this Resolution and its exhibits/attachments, including such typographical, clerical, and non-substantive corrections and/or such other revisions as may be required by the California Department of Fee and Tax Administration.

SECTION 12. The City Council finds the adoption and approval of this Resolution and the Measure are not subject to the California Environmental Quality Act ("CEQA"), because the enactment of this Resolution and the Proposed Ordinance: (1) do not constitute a "project" as defined by CEQA pursuant to California Code of Regulations, Title 14, Sections 15060(c)(3) and 15378; (2) will not result in a direct or reasonably foreseeable indirect physical change in the environment pursuant to California Code of Regulations, Title 14, Section 15060(c)(2); and (3) is covered by the general rule that CEQA applies only to projects which have the potential for causing a significant effect on the environment pursuant to California Code of Regulations, Title 14, Section 15061(b)(3).

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SECTION 13. That the City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original Resolutions.

SECTION 14. The City Council authorizes the City Clerk to administer said election and all reasonable and actual expenses shall be paid by the City upon presentation of a properly submitted bill.

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I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a special meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____
CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERÓN, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

Exhibit A: An Ordinance of the City Council of the City of Arvin Adding Chapter 3.36 to Title 3 of the Arvin Municipal Code to Establish A New Transactions and Use (Sales) Tax at the Rate of One Percent (1.0%) to be Administered by the California Department of Tax and Fee Administration.

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

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EXHIBIT A
PROPOSED COMPLETE TEXT OF THE MEASURE

ORDINANCE NO._____

AN ORDINANCE OF THE CITY OF ARVIN, CALIFORNIA, ADDING CHAPTER 3.36 TO TITLE 3 OF THE ARVIN MUNICIPAL CODE TO ESTABLISH A NEW TRANSACTIONS AND USE (SALES) TAX AT THE RATE OF ONE PERCENT (1.0%) TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

WHEREAS, pursuant to Article XIIIC of the California Constitution, Section 53720 et seq. of the California Government Code, the City of Arvin ("City") has the authority to levy a general tax, including, but not limited to, increasing an existing tax; and

WHEREAS, Article XIIIC, Section 2, of the California Constitution requires that the election at which a general tax increase is submitted to the electorate shall be consolidated with a regularly scheduled general election for members of the governing body of the local government, except in cases of emergency declared by a unanimous vote of the governing body; and

WHEREAS, Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

WHEREAS, Tuesday, November 3, 2026, is the date of the general municipal election, which has been consolidated with the statewide general election occurring on the same date, at which members of the City Council will be elected.

NOW, THEREFORE, the People of the City of Arvin, California do hereby ordain as follows:

Section 1. Recitals. The recitals set forth above are incorporated herein by this reference.

Section 2. Chapter 3.36. Chapter 3.36, entitled "Transactions and Use Tax of 2026," is hereby added to Title 3 of the City of Arvin Municipal Code as follows:

Chapter 3.36 - ARVIN ESSENTIAL CITY SERVICES SALES TAX MEASURE

3.36.010 – Title.

This Chapter shall be known as the "Arvin Essential City Services Sales Tax Measure." The City of Arvin hereinafter shall be called "City." This Chapter shall be applicable in the incorporated territory of the City.

3.36.020 – Operative Date.

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"Operative Date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this Chapter. For purposes of Revenue and Taxation Code section 7265, this Chapter shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

3.36.030 – Purpose.

This Chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Chapter.

3.36.040 – Contract with State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

3.36.050 – Transactions Tax Rate.

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For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate 1.0% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Chapter.

3.36.060 – Place of Sale.

For the purposes of this Chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

3.36.070 – Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this Chapter for storage, use or other consumption in said territory at the rate of 1.0% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

3.36.080 – Adoption of Provisions of State Law.

Except as otherwise provided in this Chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Chapter as though fully set forth herein.

3.36.090 – Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be

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taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Chapter.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. “A retailer engaged in business in the District” shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

3.36.100 – Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this chapter.

3.36.110 – Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

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1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Chapter, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and

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exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this Chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

3.36.120 – Amendments.

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All amendments subsequent to the effective date of this Chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Chapter, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Chapter.

3.36.130 – Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this Chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

3.36.140 – Severability.

If any provision of this Chapter or the application thereof to any person or circumstance is held invalid, the remainder of the Chapter and the application of such provision to other persons or circumstances shall not be affected thereby.

3.36.150 – Effective Date.

Pursuant to Elections Code Section 9217, this Chapter shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved Ordinance No. _____ by a vote of no less than a majority of the votes cast by the electors voting at the election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

3.36.160 – Termination Date.

The taxes imposed by this Chapter shall remain in effect until repealed by the voters of the City of Arvin.

3.36.170 – General Tax.

The proceeds from the tax imposed by this Chapter shall be for unrestricted general revenue purposes of the City and shall be placed into the General Fund of the City.

3.36.180 – Amendment by City Council.

The City Council has the right and authority to amend this Chapter, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

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3.36.190 – Annual Audit.

The proceeds resulting from this transactions and use tax shall be deposited into the City's general fund and become subject to the same independent annual audit requirements as other general fund revenue. The independent auditor's report, which shall include an accounting of the revenues received and expenditures made from the transactions and use tax, will be presented annually to the City Council and made available for public review. Further, such independent auditor's report and such presentation thereof to the City Council may be combined with the City's annual financial audit.

Section 3. Council Authority to Amend. The City Council has the right and authority to amend this Ordinance, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

Section 4. Environmental Compliance. The City hereby determines that this Ordinance is not in-and-of-itself a "project" pursuant to the California Environmental Quality Act, Public Resources Code section 21000 et seq., including without limitation California Code of Regulations, Title 14, Sections 15378(b)(4) and 15061(b)(3), as it can be seen with certainty that there is no possibility that the adoption of the ordinance itself may have a significant effect on the environment. This Ordinance relates to a transactions and use tax and relates to the creation of City funding mechanisms and City fiscal activities, which does not involve any commitment to any project which may result in a potentially significant physical impact on the environment.

Section 5. Severability. Should any section, subsection, paragraph, sentence, clause, or phrase of this Ordinance be declared unconstitutional or invalid for any reason, such declaration shall not affect the validity of the remaining portions of this Ordinance.

Section 6. Date of Adoption; Effective Date. Pursuant to Elections Code Section 9217, this Ordinance shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved this Ordinance by a vote of no less than a majority of the votes cast by the electors voting at the General Municipal Election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

Section 7. Execution. The Mayor shall sign this Ordinance and the City Clerk shall attest and certify to the passage and adoption of this Ordinance if a majority of the voters voting in the City's general municipal election on November 3, 2026, approve it.

Section 8. Publication. The City Clerk shall cause this Ordinance to be published in the manner required by law.

PASSED, APPROVED AND ADOPTED BY THE PEOPLE OF THE CITY OF ARVIN at the General Municipal Election held on November 3, 2026.

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APPROVED

_____
Olivia Calderón
Mayor

ATTEST

_____
Cecilia Vela
City Clerk

Shall the measure establishing 1% transactions and use tax be adopted?

To protect funding for the City of Arvin's local public safety, police and fire departments, 911 emergency response, street and road repairs, parks, youth and senior services, and other general city services , shall the measure establishing a 1% transactions and use tax in the City of Arvin, providing approximately $2,350,000 annually, until ended by voters, with all funds staying local, independent audits, and public disclosure, be adopted?

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RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA SETTING PRIORITIES FOR FILING WRITTEN ARGUMENTS REGARDING A CITY MEASURE AND DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS.

WHEREAS, a General Municipal Election is to be held in the City of Arvin, California ("City") on November 03, 2026, at which there will be submitted to the voters the following measure:

To protect funding for the City of Arvin's local public safety, police and fire departments, 911 emergency response, street and road repairs, parks, youth and senior services, and other general city services, shall the measure establishing a 1% transactions and use tax in the City of Arvin, providing approximately $2,350,000 annually, until ended by voters, with all funds staying local, independent audits, and public disclosure, be adopted?

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That the City Council authorizes ALL members of the City Council to file (a) written argument(s) In Favor of or Against the City measure not exceeding 300 words, accompanied by the printed name(s) and signature(s) of the author(s) submitting it, in accordance with Article 4, Chapter 3, Division 9 of the Elections Code of the State of California. The arguments may be changed or withdrawn until and including the date fixed by the City Clerk after which no arguments for or against the City measure may be submitted to the City Clerk.

The arguments shall be filed with the City Clerk, signed, with the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument. The arguments shall be accompanied by the Form of Statement to Be Filed By Author(s) of Argument.

SECTION 2. That the City Council directs the City Clerk to transmit a copy of the measure to the City Attorney, unless the organization or salaries of the office of the City Attorney are affected.

A. The City Attorney shall prepare an impartial analysis of the measure not exceeding 500 words showing the effect of the measure on the existing law and the operation of the measure. If the measure affects the organization or salaries of the office of the City Attorney, the City Clerk shall prepare the impartial analysis.

B. The analysis shall include a statement indicating whether the measure was placed on the ballot by a petition signed by the requisite number of voters or by the governing body of the City.

C. In the event the entire text of the measure is not printed on the ballot, nor in the voter information portion of the voter information guide, there shall be printed immediately below the impartial analysis, in no less than 10-point type, the following: "The above statement is an impartial analysis of Ordinance or Measure __. If you desire a copy of the ordinance or measure, please call the election official's office at (insert phone number) and a copy will be mailed at no cost to you."

D. The impartial analysis shall be filed by the date set by the City Clerk for the filing of primary arguments.

SECTION 3. That the proposed complete text of the measure submitted to the voters is attached hereto as Exhibit A and incorporated herein by this reference.

SECTION 4. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

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I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a special meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____
CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERÓN, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

Exhibit A: An Ordinance of the City Council of the City of Arvin Adding Chapter 3.36 to Title 3 of the Arvin Municipal Code to Establish A New Transactions and Use (Sales) Tax at the Rate of One Percent (1.0%) to be Administered by the California Department of Tax and Fee Administration.

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

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EXHIBIT A
PROPOSED COMPLETE TEXT OF THE MEASURE

ORDINANCE NO._____

AN ORDINANCE OF THE CITY OF ARVIN, CALIFORNIA, ADDING CHAPTER 3.36 TO TITLE 3 OF THE ARVIN MUNICIPAL CODE TO ESTABLISH A NEW TRANSACTIONS AND USE (SALES) TAX AT THE RATE OF ONE PERCENT (1.0%) TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

WHEREAS, pursuant to Article XIIIC of the California Constitution, Section 53720 et seq. of the California Government Code, the City of Arvin ("City") has the authority to levy a general tax, including, but not limited to, increasing an existing tax; and

WHEREAS, Article XIIIC, Section 2, of the California Constitution requires that the election at which a general tax increase is submitted to the electorate shall be consolidated with a regularly scheduled general election for members of the governing body of the local government, except in cases of emergency declared by a unanimous vote of the governing body; and

WHEREAS, Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

WHEREAS, Tuesday, November 3, 2026, is the date of the general municipal election, which has been consolidated with the statewide general election occurring on the same date, at which members of the City Council will be elected.

NOW, THEREFORE, the People of the City of Arvin, California do hereby ordain as follows:

Section 1. Recitals. The recitals set forth above are incorporated herein by this reference.

Section 2. Chapter 3.36. Chapter 3.36, entitled "Transactions and Use Tax of 2026," is hereby added to Title 3 of the City of Arvin Municipal Code as follows:

Chapter 3.36 - ARVIN ESSENTIAL CITY SERVICES SALES TAX MEASURE

3.36.010 – Title.

This Chapter shall be known as the "Arvin Essential City Services Sales Tax Measure." The City of Arvin hereinafter shall be called "City." This Chapter shall be applicable in the incorporated territory of the City.

3.36.020 – Operative Date.

"Operative Date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this Chapter. For purposes of Revenue and Taxation Code section 7265, this Chapter shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

3.36.030 – Purpose.

This Chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Chapter.

3.36.040 – Contract with State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

3.36.050 – Transactions Tax Rate.

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For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate 1.0% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Chapter.

3.36.060 – Place of Sale.

For the purposes of this Chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

3.36.070 – Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this Chapter for storage, use or other consumption in said territory at the rate of 1.0% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

3.36.080 – Adoption of Provisions of State Law.

Except as otherwise provided in this Chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Chapter as though fully set forth herein.

3.36.090 – Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be

taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Chapter.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the District" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

3.36.100 – Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this chapter.

3.36.110 – Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

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1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Chapter, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and

exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this Chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

3.36.120 – Amendments.

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All amendments subsequent to the effective date of this Chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Chapter, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Chapter.

3.36.130 – Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this Chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

3.36.140 – Severability.

If any provision of this Chapter or the application thereof to any person or circumstance is held invalid, the remainder of the Chapter and the application of such provision to other persons or circumstances shall not be affected thereby.

3.36.150 – Effective Date.

Pursuant to Elections Code Section 9217, this Chapter shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved Ordinance No. _____ by a vote of no less than a majority of the votes cast by the electors voting at the election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

3.36.160 – Termination Date.

The taxes imposed by this Chapter shall remain in effect until repealed by the voters of the City of Arvin.

3.36.170 – General Tax.

The proceeds from the tax imposed by this Chapter shall be for unrestricted general revenue purposes of the City and shall be placed into the General Fund of the City.

3.36.180 – Amendment by City Council.

The City Council has the right and authority to amend this Chapter, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

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3.36.190 – Annual Audit.

The proceeds resulting from this transactions and use tax shall be deposited into the City's general fund and become subject to the same independent annual audit requirements as other general fund revenue. The independent auditor's report, which shall include an accounting of the revenues received and expenditures made from the transactions and use tax, will be presented annually to the City Council and made available for public review. Further, such independent auditor's report and such presentation thereof to the City Council may be combined with the City's annual financial audit.

Section 3. Council Authority to Amend. The City Council has the right and authority to amend this Ordinance, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

Section 4. Environmental Compliance. The City hereby determines that this Ordinance is not in-and-of-itself a "project" pursuant to the California Environmental Quality Act, Public Resources Code section 21000 et seq., including without limitation California Code of Regulations, Title 14, Sections 15378(b)(4) and 15061(b)(3), as it can be seen with certainty that there is no possibility that the adoption of the ordinance itself may have a significant effect on the environment. This Ordinance relates to a transactions and use tax and relates to the creation of City funding mechanisms and City fiscal activities, which does not involve any commitment to any project which may result in a potentially significant physical impact on the environment.

Section 5. Severability. Should any section, subsection, paragraph, sentence, clause, or phrase of this Ordinance be declared unconstitutional or invalid for any reason, such declaration shall not affect the validity of the remaining portions of this Ordinance.

Section 6. Date of Adoption; Effective Date. Pursuant to Elections Code Section 9217, this Ordinance shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved this Ordinance by a vote of no less than a majority of the votes cast by the electors voting at the General Municipal Election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

Section 7. Execution. The Mayor shall sign this Ordinance and the City Clerk shall attest and certify to the passage and adoption of this Ordinance if a majority of the voters voting in the City's general municipal election on November 3, 2026, approve it.

Section 8. Publication. The City Clerk shall cause this Ordinance to be published in the manner required by law.

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PASSED, APPROVED AND ADOPTED BY THE PEOPLE OF THE CITY OF ARVIN at the General Municipal Election held on November 3, 2026.

APPROVED

_____
Olivia Calderón
Mayor

ATTEST

_____
Cecilia Vela
City Clerk

Attachment: Reso - CAO Impartial Analysis - CC Arguments - Election Nov 03, 2026_CC Mtg 062526 (Resolutions Giving Notice of Election and

Attachment: Reso - Rebuttal Arguments Submitted at Municipal Elections - Election Nov 03, 2026_CC Mtg 062526 (Resolutions Giving Notice of

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA PROVIDING FOR THE FILING OF REBUTTAL ARGUMENTS FOR CITY MEASURES SUBMITTED AT MUNICIPAL ELECTIONS.

WHEREAS, Section 9282 of the Elections Code of the State of California provides for written arguments to be filed in favor of or against city measures not to exceed 300 words in length; and

WHEREAS, Section 9285 of the Elections Code of the State of California authorizes the City Council, by majority vote, to adopt provisions to provide for the filing of rebuttal arguments for city measures submitted at municipal elections.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to Section 9285 of the Elections Code of the State of California, when the election official has selected the arguments for and against the measure (not exceeding 300 words each) which will be printed and distributed to the voters, the election official shall send a copy of an argument in favor of the proposition to the authors of any argument against the measure and a copy of an argument against the measure to the authors of any argument in favor of the measure immediately upon receiving the arguments.

The author or a majority of the authors of an argument relating to a city measure may prepare and submit a rebuttal argument not exceeding 250 words or may authorize in writing any other person or persons to prepare, submit, or sign the rebuttal argument.

A rebuttal argument may not be signed by more than five authors.

The rebuttal arguments shall be filed with the City Clerk, signed, with the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers, not more than 10 days after the final date for filing direct arguments. The rebuttal arguments shall be accompanied by the Form of Statement to Be Filed By Author(s) of Argument.

Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

SECTION 2. That all previous resolutions providing for the filing of rebuttal arguments for city measures are repealed.

SECTION 3. That the provisions of Section 1 shall apply only to the election to be held on November 3, 2026, and shall then be repealed

SECTION 4. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

Attachment: Reso - Rebuttal Arguments Submitted at Municipal Elections - Election Nov 03, 2026_CC Mtg 062526 (Resolutions Giving Notice of

I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a regular meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____
CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERÓN, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF KERN TO CONSOLIDATE A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY NOVEMBER 03, 2026, WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE.

WHEREAS, the City Council of the City of Arvin called a General Municipal Election to be held on November 03, 2026, for the purpose of the election of three (3) Members of the City Council of the City of Arvin; and

WHEREAS, the City Council is submitting to the voters the question relating to the establishment of a 1% transactions and use tax; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General election to be held on the same date and that within the City the precincts, polling places (vote centers) and election officers of the two elections be the same, and that the county election department of the County of Kern canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of Section 10403 of the Elections Code, the Board of Supervisors of the County of Kern is hereby requested to consent and agree to the consolidation of a General Municipal Election with the Statewide General Election on Tuesday, November 03, 2026, for the purpose of the election of three (3) Members of the City Council of the City of Arvin for the full term of four (4) years each.

SECTION 2. The measure is to appear on the ballot as follows:

To protect funding for the City of Arvin's local public safety, police and fire departments, 911 emergency response, street and road repairs, parks, youth and senior services, and other general city services, shall the measure establishing a 1% transactions and use tax in the City of Arvin, providing approximately $2,350,000 annually, until ended by voters, with all funds staying local, independent audits, and public disclosure, be adopted?	**YES**
	NO

SECTION 3. That the proposed complete text of the measure submitted to the voters is attached hereto as Exhibit A and incorporated herein by this reference. Further, pursuant to Revenue and Taxation Code Section 7285.9, the City Council hereby approves the proposed complete text of the measure in the form as provided in Exhibit A and the submission thereof to the voters of the City.

SECTION 4. That the vote requirement for the measure to pass is a majority (50% +1) of the votes cast.

SECTION 5. That the county election department of the County of Kern is authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. The election will be held and conducted in accordance with the provisions of law regulating the statewide election, including, without limitation, Elections Code Section 10418.

SECTION 6. That the Board of Supervisors is requested to issue instructions to the county election department to take any and all steps necessary for the holding of the consolidated election.

SECTION 7. That the City of Arvin recognizes that additional costs will be incurred by the County of Kern by reason of this consolidation and agrees to reimburse the County of Kern for any costs.

SECTION 8. That the City Clerk of the City of Arvin is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Elections Department of the County of Kern.

SECTION 9. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

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Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a special meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____

CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERÓN, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

Exhibit A: An Ordinance of the City Council of the City of Arvin Adding Chapter 3.36 to Title 3 of the Arvin Municipal Code to Establish A New Transactions and Use (Sales) Tax at the Rate of One Percent (1.0%) to be Administered by the California Department of Tax and Fee Administration.

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

EXHIBIT A

ORDINANCE NO._____

AN ORDINANCE OF THE CITY OF ARVIN, CALIFORNIA, ADDING CHAPTER 3.36 TO TITLE 3 OF THE ARVIN MUNICIPAL CODE TO ESTABLISH A NEW TRANSACTIONS AND USE (SALES) TAX AT THE RATE OF ONE PERCENT (1.0%) TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

WHEREAS, pursuant to Article XIIIC of the California Constitution, Section 53720 et seq. of the California Government Code, the City of Arvin ("City") has the authority to levy a general tax, including, but not limited to, increasing an existing tax; and

WHEREAS, Article XIIIC, Section 2, of the California Constitution requires that the election at which a general tax increase is submitted to the electorate shall be consolidated with a regularly scheduled general election for members of the governing body of the local government, except in cases of emergency declared by a unanimous vote of the governing body; and

WHEREAS, Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

WHEREAS, Tuesday, November 3, 2026, is the date of the general municipal election, which has been consolidated with the statewide general election occurring on the same date, at which members of the City Council will be elected.

NOW, THEREFORE, the People of the City of Arvin, California do hereby ordain as follows:

Section 1. Recitals. The recitals set forth above are incorporated herein by this reference.

Section 2. Chapter 3.36. Chapter 3.36, entitled "Transactions and Use Tax of 2026," is hereby added to Title 3 of the City of Arvin Municipal Code as follows:

Chapter 3.36 - ARVIN ESSENTIAL CITY SERVICES SALES TAX MEASURE

3.36.010 – Title.

This Chapter shall be known as the "Arvin Essential City Services Sales Tax Measure." The City of Arvin hereinafter shall be called "City." This Chapter shall be applicable in the incorporated territory of the City.

3.36.020 – Operative Date.

"Operative Date" means the first day of the first calendar quarter commencing more

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

than 110 days after the adoption of this Chapter. For purposes of Revenue and Taxation Code section 7265, this Chapter shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

3.36.030 – Purpose.

This Chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Chapter.

3.36.040 – Contract with State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

3.36.050 – Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby

imposed upon all retailers in the incorporated territory of the City at the rate 1.0% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Chapter.

3.36.060 – Place of Sale.

For the purposes of this Chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

3.36.070 – Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this Chapter for storage, use or other consumption in said territory at the rate of 1.0% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

3.36.080 – Adoption of Provisions of State Law.

Except as otherwise provided in this Chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Chapter as though fully set forth herein.

3.36.090 – Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than

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by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Chapter.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the District" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

3.36.100 – Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this chapter.

3.36.110 – Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

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1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Chapter, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and

exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Chapter.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this Chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

3.36.120 – Amendments.

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

All amendments subsequent to the effective date of this Chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Chapter, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Chapter.

3.36.130 – Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this Chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

3.36.140 – Severability.

If any provision of this Chapter or the application thereof to any person or circumstance is held invalid, the remainder of the Chapter and the application of such provision to other persons or circumstances shall not be affected thereby.

3.36.150 – Effective Date.

Pursuant to Elections Code Section 9217, this Chapter shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved Ordinance No. _____ by a vote of no less than a majority of the votes cast by the electors voting at the election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

3.36.160 – Termination Date.

The taxes imposed by this Chapter shall remain in effect until repealed by the voters of the City of Arvin.

3.36.170 – General Tax.

The proceeds from the tax imposed by this Chapter shall be for unrestricted general revenue purposes of the City and shall be placed into the General Fund of the City.

3.36.180 – Amendment by City Council.

The City Council has the right and authority to amend this Chapter, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

3.36.190 – Annual Audit.

The proceeds resulting from this transactions and use tax shall be deposited into the City's general fund and become subject to the same independent annual audit requirements as other general fund revenue. The independent auditor's report, which shall include an accounting of the revenues received and expenditures made from the transactions and use tax, will be presented annually to the City Council and made available for public review. Further, such independent auditor's report and such presentation thereof to the City Council may be combined with the City's annual financial audit.

Section 3. Council Authority to Amend. The City Council has the right and authority to amend this Ordinance, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution, pursuant to Section 9217 of the California Elections Code.

Section 4. Environmental Compliance. The City hereby determines that this Ordinance is not in-and-of-itself a "project" pursuant to the California Environmental Quality Act, Public Resources Code section 21000 et seq., including without limitation California Code of Regulations, Title 14, Sections 15378(b)(4) and 15061(b)(3), as it can be seen with certainty that there is no possibility that the adoption of the ordinance itself may have a significant effect on the environment. This Ordinance relates to a transactions and use tax and relates to the creation of City funding mechanisms and City fiscal activities, which does not involve any commitment to any project which may result in a potentially significant physical impact on the environment.

Section 5. Severability. Should any section, subsection, paragraph, sentence, clause, or phrase of this Ordinance be declared unconstitutional or invalid for any reason, such declaration shall not affect the validity of the remaining portions of this Ordinance.

Section 6. Date of Adoption; Effective Date. Pursuant to Elections Code Section 9217, this Ordinance shall be considered adopted on the date that the City Council declares that the voters of the City of Arvin have approved this Ordinance by a vote of no less than a majority of the votes cast by the electors voting at the General Municipal Election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

Section 7. Execution. The Mayor shall sign this Ordinance and the City Clerk shall attest and certify to the passage and adoption of this Ordinance if a majority of the voters voting in the City's general municipal election on November 3, 2026, approve it.

Section 8. Publication. The City Clerk shall cause this Ordinance to be published in the manner required by law.

PASSED, APPROVED AND ADOPTED BY THE PEOPLE OF THE CITY OF ARVIN at the General Municipal Election held on November 3, 2026.

APPROVED

_____
Olivia Calderón
Mayor

ATTEST

_____
Cecilia Vela
City Clerk

Attachment: WITH MEASURE - Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA CALLING AND GIVING NOTICE OF THE HOLDING OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 03, 2026, FOR THE ELECTION OF THREE (3) MEMBERS OF THE CITY COUNCIL.

WHEREAS, pursuant to California Elections Code § 1301 and Arvin Municipal Code Section 1.06.010, the Municipal Election for electing three (3) Members of the City Council for the City of Arvin, shall be held concurrently with the California State Election on Tuesday, November 03, 2026;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA, DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of California Elections Code §1301 and Arvin Municipal Code Section 1.06.010 there is called and ordered to be held in the City of Arvin, California, on Tuesday, November 03, 2026, a General Municipal Election for the purpose of electing three (3) Members of the City Council for the full term of four years each.

SECTION 2. That the ballots to be used at the election shall be in form and content as required by law.

SECTION 3. That the City Clerk is authorized, instructed and directed to coordinate with the County of Kern Elections Department to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

SECTION 4. That the polls for the election shall be open at seven o'clock a.m. the day of the election and shall remain open and continuously from that time until eight o'clock p.m. of the same day when the polls (vote centers) shall be closed, pursuant to Election Code Section 10242, except as provided in Sections 14212, 14401 of the Elections Code of the State of California.

SECTION 5. That in all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections.

SECTION 6. That notice of the time and place of holding of the election is given and that the City Clerk is authorized, instructed, and directed to give further or additional notice of the election, in time, form and manner as required by law.

SECTION 7. That in the event of a tie vote (if any two or more persons received an equal and the highest number of votes for an office) as certified by the County of Kern Elections Department, the City Council, in accordance with Election Code §15651(b), shall conduct a special runoff election to resolve the tie vote and such special runoff election is to be held on a Tuesday not less

Attachment: Reso Notice of Election Nov 2026_CC Mtg 062526 (Resolutions Giving Notice of Election and Requesting County Consolidate

Attachment: Reso Notice of Election Nov 2026_CC Mtg 062526 (Resolutions Giving Notice of Election and Requesting County Consolidate

than 40 days nor more than 125 days after the administrative or judicial certification of the election which resulted in a tie vote.

SECTION 8. That the City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original Resolutions.

I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a special meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____
CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERON, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

Attachment: Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions Giving Notice of

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ARVIN, CALIFORNIA REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF KERN TO CONSOLIDATE A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY NOVEMBER 03, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE.

WHEREAS, the City Council of the City of Arvin called a General Municipal Election to be held on November 03, 2026, for the purpose of the election of three (3) Members of the City Council of the City of Arvin; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General election to be held on the same date and that within the City the precincts, polling places and election officers of the two elections be the same, and that the county election department of the County of Kern canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF ARVIN DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of Section 10403 of the Elections Code, the Board of Supervisors of the County of Kern is hereby requested to consent and agree to the consolidation of a General Municipal Election with the Statewide General Election on Tuesday, November 03, 2026, for the purpose of the election of three (3) Members of the City Council of the City of Arvin for the full term of four years each.

SECTION 2. That the county election department of the County of Kern is authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. The election will be held and conducted in accordance with the provisions of law regulating the statewide election, including, without limitation, Elections Code Section 10418.

SECTION 3. That the Board of Supervisors is requested to issue instructions to the county election department to take any and all steps necessary for the holding of the consolidated election.

SECTION 4. That the City of Arvin recognizes that additional costs will be incurred by the County of Kern by reason of this consolidation and agrees to reimburse the County of Kern for any costs.

SECTION 5. That the City Clerk of the City of Arvin is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Elections Department of the County of Kern.

SECTION 6. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

I HEREBY CERTIFY that the foregoing resolution was passed and adopted by the City Council of the City of Arvin at a special meeting thereof held on the 25th day of June 2026 by the following vote:

AYES: _____

NOES: _____

ABSTAIN: _____

ABSENT: _____

ATTEST

_____
CECILIA VELA, City Clerk

CITY OF ARVIN

By: _____
OLIVIA CALDERON, Mayor

APPROVED AS TO FORM:

By: _____
STEPHANIE GUTIERREZ, City Attorney
Burke, Williams, & Sorensen, LLP

I, _____, City Clerk of the City of Arvin, California, DO HEREBY CERTIFY that the foregoing is a true and accurate copy of the Resolution passed and adopted by the City Council of the City of Arvin on the date and by the vote indicated herein.

Attachment: Reso Requesting Kern County Board of Sup to Consolidate Election Nov 03, 2026_CC Mtg 062526 (Resolutions Giving Notice of